

Various Claimants v Entain PLC

[2026] EWHC 1511 (Comm); Case Nos: FL-2024-000010, FL-2024-000011, FL-2025-000008, FL-2025-000009, FL-2025-000010, FL-2025-000017

High Court of Justice, Business and Property Courts of England and Wales, Commercial Court (KBD), Financial List

Jurisdiction

England and Wales

Area of law

Financial services and markets law; civil procedure; open justice

Legal question

Whether the Court should make a Filing Modification Order (FMO) pursuant to paragraph 13(b) of CPR PD 51ZH to waive the filing requirement for public domain documents in circumstances where there is substantial overlap between these shareholder proceedings and contemporaneous criminal proceedings, such that public disclosure of documents may prejudice the fair conduct of the criminal trials?

Key facts

The claimants, two groups of shareholders, brought proceedings under sections 90 and 90A of the Financial Services and Markets Act 2000 against Entain PLC alleging historic misconduct involving failure to prevent bribes in connection with Entain's business in Turkey. The claimants allege reliance on statements or omissions in information published by Entain to the market when they acquired, held or sold shares. Several persons discharging managerial responsibilities at Entain named in the pleadings have been charged with criminal offences arising from the same misconduct. Three separate criminal trials are listed from February 2028 to March 2029. The trial of the present proceedings is scheduled for May 2029. Material information upon which the claimants rely derives from a Deferred Prosecution Agreement entered into between Entain and the CPS on 5 December 2023, together with its statement of facts. The President of the King's Bench Division made an order on that date restricting dissemination of the statement of facts and judgment explaining approval of the DPA.

Holding

The Court made a Filing Modification Order under paragraph 13(b) of CPR PD 51ZH waiving the Filing Requirement for Public Domain Documents whilst exercising its power under paragraph 13(e) to require parties to include placeholders on the public access CE-Files. The Court adopted the principles established in *Dring v Cape Intermediate*, adapted to reflect the procedures introduced by PD 51ZH, which creates a starting presumption favoring open justice and public access to a wider range of documents in designated courts. The Court held that where exercise of third-party rights under PD 51ZH increases risk of information prejudicial to fair conduct of contemporaneous criminal proceedings leaking into the public domain, this should weigh heavily in favor of making an FMO. The Court found that the FMO, combined with a reporting restriction order under section 4(2) of the Contempt of Court Act 1981 and listing of trial after the third criminal trial, strikes the right balance between maintaining open justice and minimizing prejudicial disclosure. Any non-party

application under paragraph 19 of PD 51ZH must be notified to the CPS and criminal defendants to enable participation regarding redactions necessary to preserve criminal trial integrity.

Significance

This ruling provides the first detailed judicial guidance on the exercise of discretion to make Filing Modification Orders under CPR PD 51ZH, a pilot scheme only in force since 1 January 2026. The decision establishes that whilst PD 51ZH creates a presumption favoring public access to documents in Commercial Court, Financial List and London Circuit Commercial Court proceedings, the court retains discretion to modify this where contemporaneous criminal proceedings face prejudice. The ruling demonstrates how civil courts must balance open justice principles against the fair administration of criminal justice where the same underlying facts are litigated in both proceedings. The decision provides practical guidance on managing document disclosure through placeholders and redaction processes where criminal and civil proceedings overlap, affecting future management of complex multi-track litigation involving criminal and regulatory dimensions.

Precedent impact

This is the first reported decision interpreting CPR PD 51ZH and establishing the approach courts should take when exercising the power to make Filing Modification Orders. It adapts the principles from *Dring v Cape Intermediate* [2020] AC 629 to the new statutory framework whilst recognizing that the presumption in favor of access has shifted in designated courts. The ruling creates binding precedent that legitimate interests of persons engaged in contemporaneous criminal proceedings constitute a material factor in the FMO discretion, and that substantial overlap between civil and criminal proceedings involving the same events should trigger serious consideration of access restrictions. The decision will guide courts in managing future cases involving overlapping civil and criminal litigation in the specified courts.

Full judgment URL

<https://www.bailii.org/ew/cases/EWHC/Comm/2026/1511.html>